

24NNCV06150 24NNCV06150

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-07-17

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CD%2C07%2F17%2F2026

Source SHA-256: 78bdc8f587aa631d3f703705fdb333d8fd55229fa655dcf666f77ebe406c5ef

Case Number: 24NNCV06150 Hearing Date: July 17, 2026 Dept: D

TENTATIVE RULING

Calendar: Add-on

Date: July 17, 2026

Case No: 24NNCV06150 Trial Date: July 27, 2026

Case Name: Pickett, et al. v. Tesla Inc., et al.

MOTION TO BE RELIEVED AS COUNSEL

[CCP § 284]

Moving Party: Kevin Jacobson, counsel for Plaintiffs

Responding Party: Plaintiffs, Taunya Renee Pickett and Four Sisters Naturally, LLC [Unopposed]

RELIEF REQUESTED:

Leave for counsel to be relieved as Plaintiffs' attorney of record in this action.

CAUSES OF ACTION: from Complaint

1) Violation of Song-Beverly Act [Breach of Express Warranty]

2) Violation of Song-Beverly Act [Breach of Implied Warranty]

3) Violation of the Song-Beverly Act Section 1793.2

SUMMARY OF FACTS:

This is a lemon-law action. Taunya Renee Pickett and Four Sisters Naturally, LLC ("Plaintiffs") allege that on January 16, 2023, Plaintiffs purchased a 2023 Tesla Model X for which Tesla, Inc., a Texas Corporation d/b/a Tesla Motors, Inc. ("Defendant") issued written warranties. Plaintiff alleges that the vehicle was delivered with defects and nonconformities to warranties. Plaintiff alleges that the defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiffs' entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

"[T]he attorney in an action...may be changed at any time before or after judgment or final determination, as follows: (1) upon the consent of both client and attorney...; (2) upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (CCP § 284; California Rules of Court, rule 3.1362.) The withdrawal request may be denied if it would cause an injustice or undue delay in proceeding; but the court's discretion in this area is one to be exercised reasonably. (Mandell v. Superior (1977) 67 Cal.App.3d 1, 4; Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.)

In making a motion to be relieved as counsel, the attorney must comply with procedures set forth in CRC, rule 3.1362. The motion must be made using mandatory forms:

1.

1. Notice of Motion and Motion to be Relieved as Counsel directed to the client (MC-051);

2. Declaration "stating in general terms and without compromising the confidentiality of the attorney-client relationship" the reasons that the motion was brought (MC-052); and

3. Proposed Order (MC-053).

2.

The forms must be timely filed and served on all parties who have appeared in the case. (CRC rule 3.1362.) If these documents are served on the client by mail, there must be a declaration stating either that the address where the client was served is their "current residence or business address" or "the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." (CRC rule 3.1362 subd. (d)(1).)

The court has discretion on whether to allow an attorney to withdraw, and a motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) Withdrawal is generally permitted unless there is a compelling reason to continue the representation. (Heple v. Kluge (1951) 104 Cal.App.2d 461, 462.)

Counsel filed a Notice of Motion and Motion (MC-051), Declaration in Support of Motion (MC-052) and Proposed Order (MC-053). As reason for the Motion, Counsel states: "The attorney-client relationship has irreparably broken down. Despite

counsel's multiple attempts at limiting prejudice by making repeated attempts at contacting the client through various means, such as a third-party vendor via a SkipTrace, Plaintiffs and counsel have reached irreconcilable differences wherein withdrawal is required and/or permitted by CRPC 1.16(b)." (MC-052, ¶ 2.) The forms were served via mail on the client and electronically served on all other parties who have appeared in this matter on June 25, 2026. (POS.) Counsel confirmed via Skiptrace in the last 30 days that the client's address is current. (MC-052, ¶ 3(b)(1)(d).)

However, trial in this action is currently set for July 27, 2026. In addition, Four Sisters Naturally, LLC is a corporation and thus cannot represent itself in this case. Accordingly, to avoid prejudice to Plaintiffs, the Court will continue the trial date. The Court will discuss new trial dates with the parties at the hearing. The Court otherwise finds that the motion sets forth an adequate basis for withdrawal.

The motion is GRANTED.

RULING:

Counsel Kevin Jacobson's Motion to be Relieved as Counsel is GRANTED.

Counsel will be relieved effective upon the e-filing of the proof of service of the signed order upon the client.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.